

House File 319

H-1009

1 Amend House File 319 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 257.8, subsections 1 and 2, Code 2025,
5 are amended to read as follows:

6 1. *State percent of growth.* ~~The state percent of growth for~~
7 ~~the budget year beginning July 1, 2022, is two and one-half~~
8 ~~percent.~~ The state percent of growth for the budget year
9 beginning July 1, 2023, is three percent. The state percent of
10 growth for the budget year beginning July 1, 2024, is two and
11 one-half percent. The state percent of growth for the budget
12 year beginning July 1, 2025, is two percent. The state percent
13 of growth for each subsequent budget year shall be established
14 by statute which shall be enacted within thirty days of the
15 transmission of the governor's budget required by February
16 1 under [section 8.21](#) during the regular legislative session
17 beginning in the base year.

18 2. *Categorical state percent of growth.* ~~The categorical~~
19 ~~state percent of growth for the budget year beginning July~~
20 ~~1, 2022, is two and one-half percent.~~ The categorical state
21 percent of growth for the budget year beginning July 1, 2023,
22 is three percent. The categorical state percent of growth for
23 the budget year beginning July 1, 2024, is two and one-half
24 percent. The categorical state percent of growth for the
25 budget year beginning July 1, 2025, is two percent. The
26 categorical state percent of growth for each budget year shall
27 be established by statute which shall be enacted within thirty
28 days of the transmission of the governor's budget required by
29 February 1 under [section 8.21](#) during the regular legislative
30 session beginning in the base year. The categorical state
31 percent of growth may include state percents of growth for
32 the teacher salary supplement, the professional development
33 supplement, the early intervention supplement, the teacher
34 leadership supplement, and for budget years beginning on or
35 after July 1, 2020, transportation equity aid payments under

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(amending this HF 319 to CONFORM to SF 167)

1 section 257.16C.

2 Sec. 2. Section 257.16B, subsections 1 and 2, Code 2025, are
3 amended to read as follows:

4 1. For each fiscal year beginning on or after July 1, 2022
5 2023, there is appropriated from the general fund of the state
6 to the department of education an amount necessary to make all
7 school district property tax replacement payments under this
8 section, as calculated in subsection 2.

9 ~~2. a. (1) For the budget year beginning July 1, 2022,~~
10 ~~the amount of each school district's property tax replacement~~
11 ~~payment shall be the product of the school district's weighted~~
12 ~~enrollment for the budget year multiplied by the per pupil~~
13 ~~property tax replacement amount for the budget year calculated~~
14 ~~under subparagraph (2).~~

15 ~~(2) The per pupil property tax replacement amount for the~~
16 ~~budget year beginning July 1, 2022, is equal to the sum of one~~
17 ~~hundred fifty-three dollars plus the difference between the~~
18 ~~following:~~

19 ~~(a) The regular program state cost per pupil for the budget~~
20 ~~year beginning July 1, 2022, multiplied by one hundred percent~~
21 ~~less the regular program foundation base per pupil percentage~~
22 ~~pursuant to section 257.1 for the budget year beginning July~~
23 ~~1, 2022.~~

24 ~~(b) The regular program state cost per pupil for the budget~~
25 ~~year beginning July 1, 2021, multiplied by one hundred percent~~
26 ~~less the regular program foundation base per pupil percentage~~
27 ~~pursuant to section 257.1 for the budget year beginning July~~
28 ~~1, 2022.~~

29 ~~b. a.~~ (1) For the budget year beginning July 1, 2023,
30 the amount of each school district's property tax replacement
31 payment shall be the product of the school district's weighted
32 enrollment for the budget year multiplied by the per pupil
33 property tax replacement amount for the budget year calculated
34 under subparagraph (2).

35 (2) The per pupil property tax replacement amount for the

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(amending this HF 319 to CONFORM to SF 167)

1 budget year beginning July 1, 2023, is equal to the sum of one
2 hundred fifty-three dollars plus the difference between the
3 following:

4 (a) The regular program state cost per pupil for the budget
5 year beginning July 1, 2023, multiplied by one hundred percent
6 less the regular program foundation base per pupil percentage
7 pursuant to [section 257.1](#) for the budget year beginning July
8 1, 2023.

9 (b) The regular program state cost per pupil for the budget
10 year beginning July 1, 2021, multiplied by one hundred percent
11 less the regular program foundation base per pupil percentage
12 pursuant to [section 257.1](#) for the budget year beginning July
13 1, 2023.

14 ~~e. b.~~ (1) For each the budget year beginning ~~on or after~~
15 July 1, 2024, the amount of each school district's property
16 tax replacement payment shall be the product of the school
17 district's weighted enrollment for the budget year multiplied
18 by the per pupil property tax replacement amount for the budget
19 year calculated under subparagraph (2).

20 (2) The per pupil property tax replacement amount for
21 the budget years year beginning ~~on or after~~ July 1, 2024, is
22 equal to the sum of one hundred fifty-three dollars plus the
23 difference between the following:

24 (a) The regular program state cost per pupil for the budget
25 year beginning July 1, 2024, multiplied by one hundred percent
26 less the regular program foundation base per pupil percentage
27 pursuant to [section 257.1](#) for the ~~applicable~~ budget year under
28 ~~this paragraph~~ beginning July 1, 2024.

29 (b) The regular program state cost per pupil for the budget
30 year beginning July 1, 2021, multiplied by one hundred percent
31 less the regular program foundation base per pupil percentage
32 pursuant to [section 257.1](#) for the ~~applicable~~ budget year under
33 ~~this paragraph~~ beginning July 1, 2024.

34 c. (1) For each budget year beginning on or after July
35 1, 2025, the amount of each school district's property

1 tax replacement payment shall be the product of the school
2 district's weighted enrollment for the budget year multiplied
3 by the per pupil property tax replacement amount for the budget
4 year calculated under subparagraph (2).

5 (2) The per pupil property tax replacement amount for budget
6 years beginning on or after July 1, 2025, is equal to the sum
7 of one hundred fifty-three dollars plus the difference between
8 the following:

9 (a) The regular program state cost per pupil for the budget
10 year beginning July 1, 2025, multiplied by one hundred percent
11 less the regular program foundation base per pupil percentage
12 pursuant to section 257.1 for the applicable budget year under
13 this paragraph.

14 (b) The regular program state cost per pupil for the budget
15 year beginning July 1, 2021, multiplied by one hundred percent
16 less the regular program foundation base per pupil percentage
17 pursuant to section 257.1 for the applicable budget year under
18 this paragraph.

19 Sec. 3. EFFECTIVE DATE. This Act, being deemed of immediate
20 importance, takes effect upon enactment.>

21 2. Title page, by striking lines 1 through 9 and inserting
22 <An Act relating to school funding by establishing the
23 state percent of growth and the categorical state percent of
24 growth for the budget year beginning July 1, 2025, modifying
25 provisions relating to the property tax replacement payments,
26 and including effective date provisions.>

GEHLBACH of Dallas